

7.2 Official Samples

7.2.1 Legal Provisions

Samples of goods for examination, for ascertaining the duties due or for any purpose as Revenue deems necessary, may be taken and disposed of and accounted for in a manner as Revenue seems fit (Section 28 Customs Act 2015 and Article 188 UCC).

7.2.2 General

In cases of high value goods and where no irregularity is suspected, the relevant HEO is to be consulted before sampling. In all cases care is to be taken to ensure that the goods are not contaminated. It should be remembered that a controlled environment might be required before sampling of certain goods is undertaken.

Where it has been decided that samples are to be taken, the declarant or the declarant's representative is to be so informed (Article 240(1) IA).

Samples are normally to be taken by Revenue officials. The declarant or a person designated may be requested to draw the sample under official supervision where considered appropriate (Article 240(3) IA).

Where the declarant or their representative are present at the taking of samples, the declarant must give all the assistance needed to facilitate the operation (Article 189(2) UCC).

Where the declarant refuses to be present or to designate a representative or fails to render the assistance needed, the provisions in [paragraph 7.1.6](#) apply.

Sample jars/bottles must be unused, and the possibility of contamination avoided. The quality and essential characteristics of the sample must not be allowed deteriorate and it must be stored appropriately. The numbers of the packages sampled are to be recorded and the identifying marks are to be applied to the sample or its label before it is removed. Officers are to ensure that samples are properly representative and reflect the full characteristics of the goods. Moreover, where sampling is carried out by the trader or their representative, officers are to supervise the sampling so that it is performed in such a manner as to preclude the possibility of any irregularity. Separate instructions apply to other regimes, e.g. sampling of beer, oils, CAP goods etc.

7.2.3 Size of samples

The quantities taken should not exceed what is needed for analysis or more detailed examination (Article 240(4) IA).